

MASTER VENDOR AGREEMENT

This Master Vendor Agreement (hereinafter referred to as the "Agreement") is entered into as of the Effective Date (as defined below), by and between:

TATA ADVANCED SYSTEMS LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at Bombay House, 24 Homi Mody Street, Fort, Mumbai - 400001, Maharashtra, India, and its applicable Affiliates (hereinafter individually or collectively referred to as "TATA" or "Company" or "Buyer"),

AND

OMEGA CYBERNETICS SOLUTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at 42nd Floor, Cyber Towers, Hitech City, Hyderabad - 500081, Telangana, India (hereinafter referred to as the "Vendor" or "Supplier" or "Service Provider").

TATA and the Vendor may hereinafter be referred to individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, TATA is engaged in the business of advanced engineering, digital transformation, defence systems, and integrated supply chain operations across multiple jurisdictions;

WHEREAS, the Vendor represents that it possesses specialized capabilities in the provision of enterprise software solutions, embedded systems, cloud infrastructure services, and ancillary consulting services (collectively, the "Services");

WHEREAS, TATA desires to engage the Vendor, and the Vendor desires to be engaged by TATA, to provide the Services on a non-exclusive, preferred-vendor basis, subject to the terms and conditions set forth herein and in the applicable Statement(s) of Work;

NOW, THEREFORE, in consideration of the mutual covenants, promises, and considerations set forth herein, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

ARTICLE 1: DEFINITIONS & INTERPRETATION

1.1 "Affiliate" means, with respect to any Party, any entity that directly or indirectly Controls, is Controlled by, or is under common Control with such Party; provided, however, that for the purposes of this Agreement, the term "Affiliate" shall not include any entity in which TATA or its parent entity holds less than twenty-six percent (26%) of the voting securities or equity interest, unless otherwise agreed in writing by the Vendor.

1.2 "Applicable Laws" means all laws, statutes, ordinances, rules, regulations, guidelines, notifications, directives, judgments, decrees, injunctions, writs, orders, or governmental policies of any jurisdiction where Services are performed, including but not limited to the Information Technology Act, 2000 (as amended), the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, the Digital Personal Data Protection Act, 2023, the Indian Contract Act, 1872, the Foreign Exchange Management Act, 1999, the Securities and Exchange Board of India Act, 1992, the Prevention of Money Laundering Act, 2002, the Goods and Services Tax Act, 2017, and all labour, employment, environmental, and export control laws,

as may be amended from time to time, and any successor legislation thereto.

1.3 "Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by either Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether in oral, written, electronic, visual, or tangible form, including but not limited to technical data, know-how, research, product plans, software code, algorithms, customer lists, pricing information, business strategies, and personal data; provided that Confidential Information shall not include information that: (a) is or becomes generally available to the public through no breach of this Agreement by the Receiving Party; (b) was rightfully in the Receiving Party's possession prior to disclosure by the Disclosing Party, as evidenced by written records; (c) is rightfully obtained by the Receiving Party from a third party without restriction and without breach of any confidentiality obligation; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information, as evidenced by contemporaneous written records.

1.4 "Deliverables" means all work product, documents, designs, drawings, software code, reports, data, methodologies, tools, frameworks, and other materials specifically created or developed by the Vendor for TATA under a Statement of Work, excluding, however, any Pre-existing Materials or Third-Party Materials incorporated therein.

1.5 "Effective Date" means the date of last signature affixed to this Agreement by the authorized representatives of both Parties, or such other date as may be mutually agreed upon in writing.

1.6 "Intellectual Property Rights" or "IPR" means all patents, patent applications, copyrights, trademarks, service marks, trade names, domain names, rights in designs, rights in computer software (including source code and object code), database rights, rights in Confidential Information, know-how, trade secrets, moral rights, and all other intellectual property rights, in each case whether registered or unregistered and including all applications for and renewals or extensions of such rights, and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.

1.7 "Personal Data" means any information relating to an identified or identifiable natural person ("Data Subject") processed by either Party in connection with the performance of this Agreement, including but not limited to names, addresses, contact details, government identification numbers, biometric data, financial information, and any other data falling within the definition of "personal data" or "sensitive personal data" under Applicable Laws.

1.8 "Statement of Work" or "SOW" means a document executed by authorized representatives of both Parties describing the specific Services, Deliverables, timelines, milestones, acceptance criteria, and pricing for a particular engagement, which document shall be deemed incorporated into and governed by this Agreement.

1.9 "Subcontractor" means any third party engaged by the Vendor to perform any portion of the Services, with or without the prior written consent of TATA, as provided in Article 10 herein.

1.10 Interpretation. In this Agreement, unless the context otherwise requires: (a) words importing the singular number shall include the plural and vice versa; (b) references to any gender shall include all genders; (c) the words "include," "includes," and "including" shall be deemed to be followed by the phrase "without limitation"; (d) the headings are for convenience only and shall not affect the interpretation of this Agreement; (e) references to "Articles," "Sections," "Clauses," or "Schedules" are to articles, sections, clauses, or schedules of this Agreement; and (f) any reference to a statute, statutory provision, or subordinate legislation shall be construed as a reference to the

same as amended, consolidated, extended, or re-enacted from time to time.

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ARTICLE 2: SCOPE OF SERVICES & ENGAGEMENT

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2.1 General Engagement. Subject to the terms and conditions of this Agreement, TATA hereby engages the Vendor, and the Vendor hereby accepts such engagement, to provide the Services and Deliverables as described in each SOW. The Vendor shall perform the Services in a professional, workmanlike manner, consistent with industry standards and best practices, and in compliance with all Applicable Laws and TATA's internal policies, codes of conduct, and security protocols, as may be communicated to the Vendor from time to time.

2.2 Statements of Work. Each SOW shall be substantially in the form set forth in Schedule A hereto, or in such other form as the Parties may mutually agree upon in writing. No SOW shall be binding unless executed by authorized representatives of both Parties. In the event of any conflict or inconsistency between the terms of this Agreement and any SOW, the terms of this Agreement shall prevail unless the SOW expressly states that it is intended to override a specific provision of this Agreement, in which case the SOW shall prevail solely with respect to such specific provision, provided that such override is approved in writing by TATA's Legal Department.

2.3 Changes and Variations. TATA reserves the right, exercisable in its sole and absolute discretion, to request changes to the scope, nature, or timing of the Services at any time during the term of an SOW. The Vendor shall not unreasonably withhold or delay its consent to any such changes. In the event that any change results in an increase or decrease in the Vendor's cost of performance, the Parties shall negotiate in good faith an equitable adjustment to the fees and timelines; provided, however, that the Vendor shall continue to perform the Services in accordance with the changed requirements pending such negotiation, and any failure to reach agreement on adjusted fees within fifteen (15) business days shall not excuse the Vendor's obligation to continue performance. If the Parties fail to agree on an equitable adjustment within thirty (30) days, TATA may, at its option, direct the Vendor to proceed with the changes at the existing rates or terminate the applicable SOW for convenience upon seven (7) days' written notice.

2.4 Vendor Personnel. The Vendor shall assign qualified, experienced, and skilled personnel to perform the Services. The Vendor represents and warrants that all personnel assigned possess the requisite qualifications, certifications, and security clearances necessary for the performance of the Services. TATA shall have the right to interview and approve all key personnel proposed by the Vendor, and the Vendor shall not replace any approved key personnel without TATA's prior written consent, not to be unreasonably withheld. Notwithstanding the foregoing, TATA may, at any time and for any reason, require the removal of any Vendor personnel from the performance of the Services by providing written notice to the Vendor, and the Vendor shall promptly replace such personnel with personnel of comparable or superior qualifications at no additional cost to TATA.

2.5 Exclusivity. This Agreement does not create an exclusive relationship between the Parties. TATA reserves the right to engage third parties to perform services similar to the Services, and the Vendor shall not be precluded from providing similar services to other clients; provided, however, that the Vendor shall not, during the term of this Agreement and for a period of twenty-four (24) months thereafter, directly or indirectly solicit, induce, recruit, or encourage any of TATA's employees, contractors, or consultants to terminate their relationship with TATA or accept employment or engagement with the Vendor or any of its Affiliates, except pursuant to general, non-targeted public advertisements or recruitment campaigns.

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ARTICLE 3: TERM, RENEWAL, AND TERMINATION

3.1 Initial Term. This Agreement shall commence on the Effective Date and shall continue for an initial period of three (3) years (the "Initial Term"), unless earlier terminated in accordance with the provisions of this Article 3.

3.2 Renewal. Upon expiry of the Initial Term, this Agreement shall automatically renew for successive one (1) year periods (each, a "Renewal Term"), unless either Party provides written notice of non-renewal to the other Party at least sixty (60) days prior to the expiration of the then-current term.

Notwithstanding the foregoing, TATA may elect to renew this Agreement for an additional three (3) year period upon the same terms and conditions by providing written notice to the Vendor at least thirty (30) days prior to expiration, and the Vendor shall be bound by such renewal unless the Vendor objects in writing within ten (10) business days of receipt of such notice, in which case the Parties shall negotiate revised terms in good faith; provided that if the Parties fail to reach agreement within forty-five (45) days, this Agreement shall terminate at the end of the then-current term without further obligation or liability to either Party, except for obligations that expressly survive termination.

3.3 Termination for Convenience. TATA may terminate this Agreement or any SOW, in whole or in part, for any reason or no reason, upon ninety (90) days' prior written notice to the Vendor. In the event of termination for convenience, TATA's sole obligation shall be to pay the Vendor for: (a) Services satisfactorily performed and Deliverables accepted prior to the effective date of termination; and (b) non-cancellable commitments for Third-Party Materials or Subcontractor services, provided that the Vendor demonstrates to TATA's reasonable satisfaction that such commitments were made in the ordinary course of performance and cannot be cancelled without penalty, and further provided that TATA shall have the right to assume such commitments directly.

3.4 Termination for Cause. Either Party may terminate this Agreement or any SOW immediately upon written notice if the other Party: (a) commits a material breach of this Agreement and fails to cure such breach within thirty (30) days (or ten (10) days in the case of payment defaults by TATA) after receipt of written notice thereof; (b) becomes insolvent, files for bankruptcy or reorganization, makes an assignment for the benefit of creditors, or has a receiver appointed for substantially all of its assets; (c) ceases to operate in the ordinary course of business; or (d) is dissolved or liquidated.

3.5 Termination by TATA for Additional Causes. Notwithstanding Section 3.4, TATA may terminate this Agreement or any SOW immediately upon written notice if: (a) there occurs a Change of Control (as defined below) of the Vendor; (b) the Vendor fails to maintain the insurance coverage required under Article 12; (c) the Vendor breaches its obligations regarding Confidential Information, data security, or compliance with Applicable Laws; (d) the Vendor's performance of the Services poses a risk to TATA's operations, reputation, or security, as determined by TATA in its reasonable discretion; or (e) the Vendor or any of its personnel is debarred, suspended, or otherwise excluded from participating in government contracts.

For the purposes of this Section 3.5, "Change of Control" means: (i) the sale, lease, transfer, or other disposition of all or substantially all of the Vendor's assets; (ii) the merger, consolidation, or amalgamation of the Vendor with or into any other entity; (iii) the acquisition by any person or group of persons of more than thirty-three percent (33%) of the voting securities or equity interest of the Vendor; or (iv) any other transaction or series of related transactions having substantially the same effect as the foregoing.

3.6 Effects of Termination. Upon expiration or termination of this Agreement or any SOW for any reason: (a) all licenses granted by TATA to the Vendor shall immediately terminate; (b) the Vendor shall immediately cease performance of the

Services; (c) the Vendor shall return or destroy all TATA Confidential Information and Deliverables, as directed by TATA, and certify such return or destruction in writing; (d) the Vendor shall assign to TATA all work-in-progress and partially completed Deliverables; (e) TATA shall have the right to engage a third party to complete the Services; and (f) the Vendor shall cooperate with TATA in transitioning the Services to TATA or a replacement vendor, at no additional charge, for a period not exceeding one hundred eighty (180) days.

3.7 Survival. The provisions of Articles 1 (Definitions), 4 (Fees and Payment), 6 (Intellectual Property Rights), 7 (Confidentiality and Data Protection), 8 (Representations and Warranties), 9 (Indemnification), 10 (Limitation of Liability), 11 (Insurance), 13 (Compliance and Audit), 14 (Governing Law and Dispute Resolution), and such other provisions as by their nature should survive, shall survive the expiration or termination of this Agreement.

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ARTICLE 4: FEES, PAYMENT TERMS, AND TAXES

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4.1 Fees. In consideration for the Services and Deliverables, TATA shall pay the Vendor the fees set forth in the applicable SOW (the "Fees"). Unless otherwise specified in the SOW, the Fees shall be deemed to include all costs, expenses, overheads, and charges incurred by the Vendor in connection with the performance of the Services, including but not limited to travel, accommodation, communication, software licenses, hardware, and Subcontractor costs. All Fees are fixed and firm for the duration of the applicable SOW, unless adjusted in accordance with Section 4.4.

4.2 Invoicing. The Vendor shall submit invoices to TATA on a monthly basis, within five (5) business days following the end of each calendar month. Each invoice shall be in the format prescribed by TATA and shall contain: (a) the SOW reference number; (b) a detailed description of Services performed and Deliverables delivered during the invoicing period; (c) the number of hours worked (if applicable) and the applicable rates; (d) supporting timesheets and expense reports; and (e) such other information as TATA may reasonably require. TATA shall have the right to reject any invoice that does not comply with these requirements.

4.3 Payment Terms. TATA shall pay undisputed portions of properly submitted invoices within sixty (60) days from the date of receipt of the invoice or acceptance of the applicable Deliverables, whichever is later. TATA may withhold payment of any disputed portion of an invoice pending resolution of the dispute, without interest or penalty. The Parties shall cooperate in good faith to resolve any invoicing disputes within thirty (30) days of the date of the disputed invoice. TATA shall not be obligated to pay any invoice submitted more than ninety (90) days after the end of the period to which such invoice relates.

4.4 Price Adjustment. The Fees may be adjusted annually on each anniversary of the Effective Date, by a percentage not exceeding the increase in the Consumer Price Index for Industrial Workers (CPI-IW) published by the Ministry of Labour and Employment, Government of India, for the preceding twelve (12) month period, provided that the Vendor submits a written request for such adjustment at least sixty (60) days prior to the applicable anniversary, together with supporting documentation. No adjustment shall exceed five percent (5%) in any twelve (12) month period, and no adjustment shall be made for the first twelve (12) months of the Initial Term or any SOW.

4.5 Set-Off. TATA shall have the right to set off against any amounts due to the Vendor under this Agreement or any other agreement between the Parties: (a) any amounts owed by the Vendor to TATA under this Agreement; (b) any damages, losses, or costs incurred by TATA due to the Vendor's breach of this Agreement; and (c) any claims or disputes arising under this Agreement, whether or not such claims have been finally determined. The Vendor hereby waives any right to contest such set-off.

4.6 Taxes. All Fees are exclusive of applicable taxes, duties, levies, and charges, including but not limited to Goods and Services Tax (GST), central, state, and local taxes. The Vendor shall invoice TATA for all applicable taxes separately, and TATA shall pay such taxes unless the Vendor provides valid tax exemption certificates. The Vendor shall be solely responsible for all taxes on its income, payroll, property, and employees. If any withholding taxes are required by Applicable Laws to be deducted from payments to the Vendor, TATA shall deduct such taxes from the Fees and remit them to the appropriate taxing authority, and shall provide the Vendor with evidence of such remittance. The Vendor shall cooperate with TATA in claiming any available tax treaty benefits or exemptions.

4.7 Late Payment. In the event that TATA fails to pay any undisputed amount when due, and such failure continues for a period exceeding one hundred twenty (120) days after written notice from the Vendor, the Vendor may charge interest on the overdue amount at the rate of two percent (2%) per annum above the prevailing State Bank of India MCLR rate, compounded monthly, provided that such interest shall not accrue during any period in which the Parties are in good faith dispute resolution regarding such amount. Notwithstanding the foregoing, the Vendor shall not be entitled to suspend performance of the Services or withhold Deliverables due to any payment dispute, except with respect to Services performed more than one hundred eighty (180) days after the date of the applicable invoice.

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ARTICLE 5: SERVICE LEVELS, ACCEPTANCE, AND REMEDIES

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5.1 Service Levels. The Vendor shall meet or exceed the service levels, performance metrics, and key performance indicators ("KPIs") specified in each SOW or applicable service level agreement ("SLA"). The Vendor shall monitor its performance against the SLA and provide TATA with monthly performance reports in the format specified by TATA. Failure to meet any service level shall constitute a material breach of this Agreement, subject to the cure provisions of Section 3.4.

5.2 Acceptance Criteria. Deliverables shall be subject to acceptance testing by TATA in accordance with the acceptance criteria set forth in the applicable SOW. TATA shall have a period of thirty (30) days from the date of delivery (the "Review Period") to evaluate the Deliverables and notify the Vendor of acceptance or rejection. If TATA does not notify the Vendor of rejection within the Review Period, the Deliverables shall be deemed accepted; provided, however, that latent defects discovered after the Review Period shall not be precluded from being raised by TATA, and the Vendor shall remedy such defects at no additional cost for a period of twelve (12) months from the date of deemed acceptance. TATA may reject Deliverables if they fail to conform to the acceptance criteria, specifications, or industry standards, and the Vendor shall, at its sole cost and expense, correct all defects and re-deliver the Deliverables within the timeframes specified by TATA.

5.3 Acceptance Not Unreasonably Withheld. TATA shall not unreasonably withhold, condition, or delay acceptance of Deliverables that substantially conform to the acceptance criteria. If TATA rejects Deliverables, it shall provide the Vendor with a detailed written explanation of the deficiencies. The Vendor shall have the right to dispute any rejection by providing written notice to TATA within five (5) business days, specifying the basis for the dispute, and the Parties shall attempt to resolve such dispute in good faith. If the Parties are unable to resolve the dispute within ten (10) business days, the matter shall be escalated to the senior management of both Parties.

5.4 Service Credits. In the event that the Vendor fails to meet a service level specified in the SLA, TATA shall be entitled to service credits as specified in the SLA. The Parties acknowledge and agree that service credits are liquidated

damages and represent a genuine pre-estimate of the losses likely to be suffered by TATA, and are not a penalty. TATA's right to service credits shall be in addition to, and not in lieu of, any other rights or remedies available to TATA under this Agreement or at law, including the right to terminate for cause. The Vendor shall not be entitled to challenge the calculation or application of service credits on the grounds that they are excessive or constitute a penalty.

5.5 Root Cause Analysis. For any failure to meet a service level or any critical incident (as defined in the SLA), the Vendor shall, within forty-eight (48) hours of notification by TATA, provide a detailed root cause analysis and corrective action plan. The Vendor shall implement the corrective action plan within the timeframe specified by TATA and shall bear all costs associated with such implementation. Repeated failures to meet service levels or implement corrective actions shall entitle TATA to terminate the applicable SOW or this Agreement for cause.

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ARTICLE 6: INTELLECTUAL PROPERTY RIGHTS

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6.1 Ownership of Deliverables. All Deliverables, including all Intellectual Property Rights therein, shall be the exclusive property of TATA from the moment of creation. The Vendor hereby irrevocably assigns, transfers, and conveys to TATA all right, title, and interest in and to the Deliverables, including all Intellectual Property Rights, for the full term thereof and all renewals and extensions thereof, throughout the world. The Vendor agrees to execute all documents and take all actions reasonably requested by TATA to perfect, register, record, or enforce TATA's ownership of the Deliverables.

6.2 Moral Rights. To the extent that any Deliverables contain works in which moral rights subsist under Applicable Laws, the Vendor hereby waives all moral rights and agrees not to institute, support, maintain, or permit any action or claim on the grounds that any use of the Deliverables infringes the Vendor's moral rights. The Vendor shall cause all of its employees, contractors, and Subcontractors to similarly waive all moral rights in the Deliverables.

6.3 Pre-existing Materials. The Vendor retains all right, title, and interest in and to any methodologies, tools, software, know-how, or other materials owned by the Vendor prior to the Effective Date or developed outside the scope of this Agreement ("Pre-existing Materials"), provided that to the extent any Pre-existing Materials are incorporated into the Deliverables, the Vendor hereby grants to TATA a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, non-exclusive license, with the right to sublicense through multiple tiers, to use, reproduce, modify, prepare derivative works of, display, perform, distribute, and otherwise exploit such Pre-existing Materials solely as incorporated into the Deliverables or as reasonably necessary for the use, maintenance, support, or enhancement of the Deliverables.

6.4 Third-Party Materials. The Vendor shall not incorporate any third-party software, code, libraries, or other materials ("Third-Party Materials") into the Deliverables without TATA's prior written consent. All Third-Party Materials shall be licensed to TATA on terms no less favorable than those under which the Vendor is licensed to use such materials, and the Vendor shall ensure that such licenses permit TATA to use, reproduce, modify, distribute, and create derivative works of the Third-Party Materials as part of the Deliverables. The Vendor shall indemnify TATA against any claims arising from the use of Third-Party Materials in violation of the applicable license terms.

6.5 Open Source Software. The Vendor represents and warrants that no Deliverables contain, incorporate, or are derived from any open source software, freeware, or software licensed under any license that: (a) requires the distribution of source code; (b) requires the grant of a license to create derivative works; (c) imposes any restrictions on future licensing or distribution; or (d) requires the licensing of other software under the same

terms (collectively, "Restricted Open Source"), unless such use has been expressly approved in writing by TATA. In the event that any Deliverables contain Restricted Open Source, the Vendor shall immediately notify TATA in writing and shall indemnify TATA against any claims, damages, or losses arising therefrom.

6.6 Reservation of Rights. All rights not expressly granted to TATA under this Article 6 are reserved by the Vendor. Except as expressly provided herein, nothing in this Agreement shall be construed as granting TATA any license, express or implied, by estoppel or otherwise, under any Intellectual Property Rights of the Vendor other than the licenses expressly set forth in Sections 6.3 and 6.4.

6.7 Infringement Indemnity. The Vendor shall defend, indemnify, and hold harmless TATA and its Affiliates, officers, directors, employees, agents, and customers from and against any and all third-party claims, actions, suits, proceedings, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to any allegation that the Deliverables or the Vendor's performance of the Services infringes, misappropriates, or violates any Intellectual Property Rights of any third party. TATA shall promptly notify the Vendor of any such claim and cooperate with the Vendor in the defense thereof. The Vendor shall not settle any such claim without TATA's prior written consent, not to be unreasonably withheld. If the Deliverables are held to infringe, or if the Vendor believes they may infringe, the Vendor shall, at its option and expense: (a) procure for TATA the right to continue using the Deliverables; (b) modify the Deliverables to make them non-infringing while preserving substantially equivalent functionality; or (c) replace the Deliverables with non-infringing alternatives of substantially equivalent functionality.

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ARTICLE 7: CONFIDENTIALITY AND DATA PROTECTION

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7.1 Obligations of Confidentiality. The Receiving Party agrees to: (a) hold all Confidential Information of the Disclosing Party in strict confidence; (b) not disclose such Confidential Information to any third party except to those of its employees, contractors, and advisors who have a strict need to know and who are bound by confidentiality obligations no less protective than those contained herein; (c) use such Confidential Information solely for the purposes of performing its obligations or exercising its rights under this Agreement; and (d) protect such Confidential Information with at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. The Receiving Party shall be liable for any breach of this Article 7 by its employees, contractors, or advisors.

7.2 Compelled Disclosure. The Receiving Party may disclose Confidential Information if required by law, regulation, or court order, provided that the Receiving Party: (a) gives the Disclosing Party prompt written notice of such requirement (to the extent permitted by law); (b) cooperates with the Disclosing Party in seeking a protective order or other appropriate remedy; and (c) discloses only that portion of the Confidential Information that is legally required to be disclosed.

7.3 Return of Confidential Information. Upon expiration or termination of this Agreement or upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy all Confidential Information of the Disclosing Party and certify such return or destruction in writing, except for archival copies maintained in accordance with standard backup procedures or as required by law, which copies shall remain subject to the confidentiality obligations herein.

7.4 Data Protection. The Vendor acknowledges and agrees that in performing the Services, it may process Personal Data on behalf of TATA. The Vendor shall: (a)

process Personal Data only in accordance with TATA's documented instructions, including with regard to international transfers of Personal Data; (b) implement appropriate technical and organizational measures to protect Personal Data against unauthorized or unlawful processing, accidental loss, destruction, damage, theft, alteration, or disclosure; (c) ensure the confidentiality, integrity, and availability of Personal Data; (d) not engage any Subprocessor without TATA's prior written consent; (e) assist TATA in responding to requests from Data Subjects and supervisory authorities; (f) notify TATA without undue delay (and in any event within seventy-two (72) hours) upon becoming aware of any Personal Data breach; (g) at TATA's choice, delete or return all Personal Data upon termination of the Agreement; and (h) make available to TATA all information necessary to demonstrate compliance with this Section 7.4.

7.5 Data Security. The Vendor shall implement and maintain a comprehensive information security program that includes: (a) encryption of Personal Data in transit and at rest using industry-standard algorithms; (b) access controls based on the principle of least privilege; (c) regular security assessments, vulnerability testing, and penetration testing; (d) incident response and business continuity plans; (e) employee security awareness training; and (f) physical security measures. The Vendor shall comply with ISO 27001, ISO 27017, and ISO 27018 standards, or such other standards as TATA may specify from time to time. The Vendor shall undergo annual third-party security audits and shall provide TATA with the results of such audits upon request.

7.6 Cross-Border Data Transfers. The Vendor shall not transfer any Personal Data outside of India without TATA's prior written consent and unless adequate safeguards are in place, such as Standard Contractual Clauses approved by the relevant supervisory authority, binding corporate rules, or adequacy decisions. The Vendor shall ensure that any recipient of Personal Data outside India provides a level of protection substantially similar to that provided under Applicable Laws.

7.7 Data Localization. To the extent required by Applicable Laws, including the Digital Personal Data Protection Act, 2023, and any directions issued by the Data Protection Board of India or other regulatory authorities, the Vendor shall store and process all sensitive personal data and critical personal data (as defined under Applicable Laws) exclusively within the territory of India. The Vendor shall not transfer such data outside India under any circumstances, unless explicitly permitted by Applicable Laws and approved by TATA in writing.

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ARTICLE 8: REPRESENTATIONS AND WARRANTIES

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8.1 Mutual Representations. Each Party represents and warrants to the other that: (a) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of incorporation; (b) it has the full power and authority to enter into this Agreement and to perform its obligations hereunder; (c) the execution, delivery, and performance of this Agreement have been duly authorized by all necessary corporate action; (d) this Agreement constitutes a legal, valid, and binding obligation enforceable against it in accordance with its terms; and (e) the execution, delivery, and performance of this Agreement do not violate any Applicable Laws or any agreement to which it is a party.

8.2 Vendor Representations. The Vendor further represents and warrants that: (a) the Services shall be performed in a professional and workmanlike manner in accordance with industry standards; (b) the Deliverables shall conform to the specifications, requirements, and acceptance criteria set forth in the applicable SOW; (c) the Deliverables shall not contain any viruses, worms, Trojan horses, spyware, malware, or other harmful code; (d) the Vendor has obtained all necessary licenses, consents, and permissions to perform the Services and grant the rights herein; (e) the Vendor's performance of the Services and TATA's use of the Deliverables shall not infringe or violate any Intellectual Property Rights or other rights of any third party; (f) the Vendor

is not subject to any sanctions, embargoes, or restrictions imposed by the United Nations, the European Union, the United States, India, or any other applicable jurisdiction; (g) the Vendor shall comply with all export control laws and regulations; and (h) the Vendor has disclosed to TATA all material facts and circumstances that could reasonably be expected to affect TATA's decision to enter into this Agreement.

8.3 Warranty Period. The Vendor warrants that the Deliverables shall be free from defects in materials, workmanship, and design for a period of twenty-four (24) months from the date of acceptance (the "Warranty Period"). During the Warranty Period, the Vendor shall, at its sole cost and expense, repair, replace, or re-perform any defective Deliverables. The Vendor's obligations under this Section 8.3 shall survive termination or expiration of this Agreement.

8.4 Disclaimer. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR TITLE. TATA EXPRESSLY DISCLAIMS ALL WARRANTIES REGARDING THE SERVICES AND DELIVERABLES, AND THE VENDOR ACKNOWLEDGES THAT IT IS NOT RELYING ON ANY REPRESENTATION OR WARRANTY NOT EXPRESSLY SET FORTH HEREIN. THE VENDOR DOES NOT WARRANT THAT THE SERVICES OR DELIVERABLES WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE.

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ARTICLE 9: INDEMNIFICATION

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9.1 Vendor Indemnification. The Vendor shall defend, indemnify, and hold harmless TATA, its Affiliates, and their respective officers, directors, employees, agents, successors, and assigns (collectively, the "TATA Indemnitees") from and against any and all claims, demands, actions, suits, proceedings, judgments, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees, court costs, and expert witness fees) (collectively, "Losses") arising out of or relating to: (a) any breach by the Vendor of any representation, warranty, covenant, or obligation under this Agreement; (b) any negligence, misconduct, or willful malfeasance by the Vendor or its personnel; (c) any claim that the Deliverables or Services infringe, misappropriate, or violate any Intellectual Property Rights of any third party; (d) any violation of Applicable Laws by the Vendor; (e) any breach of data security or unauthorized access to, or disclosure of, Personal Data or Confidential Information; (f) any claim by a Subcontractor, employee, or agent of the Vendor for wages, benefits, or other compensation; (g) any death, bodily injury, or damage to real or tangible personal property arising from the Vendor's performance of the Services; and (h) any taxes, duties, or penalties for which the Vendor is responsible under Section 4.6.

9.2 TATA Indemnification. TATA shall defend, indemnify, and hold harmless the Vendor from and against any Losses arising out of or relating to: (a) TATA's material breach of this Agreement; and (b) TATA's gross negligence or willful misconduct; provided, however, that TATA's aggregate liability under this Section 9.2 shall not exceed the total amount of Fees paid by TATA to the Vendor under the applicable SOW in the twelve (12) months preceding the event giving rise to the claim.

9.3 Indemnification Procedure. The indemnified party shall: (a) promptly notify the indemnifying party in writing of any claim for which indemnification is sought; (b) cooperate with the indemnifying party in the defense and settlement of such claim; and (c) allow the indemnifying party to control the defense and settlement of such claim. The indemnifying party shall not settle any claim in a manner that adversely affects the indemnified party's rights or interests without the indemnified party's prior written consent, not to be unreasonably withheld. The indemnified party may participate in the defense at its own expense with counsel of its choice.

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ARTICLE 10: LIMITATION OF LIABILITY

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10.1 Limitation on Indirect Damages. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAWS, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, OR COST OF SUBSTITUTE SERVICES, ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10.2 Cap on Liability. EXCEPT WITH RESPECT TO: (A) THE PARTIES' RESPECTIVE OBLIGATIONS UNDER ARTICLE 9 (INDEMNIFICATION); (B) BREACHES OF ARTICLE 7 (CONFIDENTIALITY AND DATA PROTECTION); (C) THE VENDOR'S INFRINGEMENT OR MISAPPROPRIATION OF TATA'S INTELLECTUAL PROPERTY RIGHTS; (D) THE VENDOR'S FRAUD, WILLFUL MISCONDUCT, OR GROSS NEGLIGENCE; OR (E) ANY LIABILITY THAT CANNOT BE LIMITED UNDER APPLICABLE LAWS, THE TOTAL AGGREGATE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED THE TOTAL AMOUNT OF FEES PAID OR PAYABLE BY TATA TO THE VENDOR UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM, OR INR 50,00,000 (Indian Rupees Fifty Lakhs), WHICHEVER IS GREATER.

10.3 Essential Purpose. THE LIMITATIONS OF LIABILITY SET FORTH IN THIS ARTICLE 10 SHALL APPLY REGARDLESS OF WHETHER THE CLAIM FOR DAMAGES IS BASED ON BREACH OF CONTRACT, BREACH OF WARRANTY, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR ANY OTHER LEGAL THEORY, AND SHALL SURVIVE ANY TERMINATION OR EXPIRATION OF THIS AGREEMENT. THE PARTIES ACKNOWLEDGE THAT THESE LIMITATIONS ARE AN ESSENTIAL ELEMENT OF THE BARGAIN BETWEEN THE PARTIES AND REFLECT AN ALLOCATION OF RISK THAT IS REFLECTED IN THE PRICING OF THE SERVICES.

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ARTICLE 11: INSURANCE

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11.1 Insurance Coverage. The Vendor shall, at its own expense, obtain and maintain in full force and effect during the term of this Agreement and for a period of three (3) years thereafter, the following insurance coverage with insurers having a minimum credit rating of A- (or equivalent) from Standard & Poor's or A.M. Best: (a) Commercial General Liability insurance with limits of not less than INR 10,00,00,000 (Indian Rupees Ten Crores) per occurrence and INR 20,00,00,000 (Indian Rupees Twenty Crores) in the aggregate; (b) Professional Liability (Errors & Omissions) insurance with limits of not less than INR 5,00,00,000 (Indian Rupees Five Crores) per claim and INR 10,00,00,000 (Indian Rupees Ten Crores) in the aggregate; (c) Workers' Compensation and Employer's Liability insurance as required by Applicable Laws; (d) Cyber Liability insurance with limits of not less than INR 15,00,00,000 (Indian Rupees Fifteen Crores) per claim, covering data breaches, privacy violations, network security failures, and regulatory fines; and (e) such other insurance as TATA may reasonably require from time to time.

11.2 Additional Insured. TATA and its Affiliates shall be named as additional insureds on the Vendor's Commercial General Liability and Cyber Liability policies. The Vendor shall provide TATA with certificates of insurance evidencing the required coverage within ten (10) business days of the Effective Date and upon renewal thereafter. All policies shall contain a waiver of subrogation in favor of TATA.

11.3 Notice of Cancellation. The Vendor shall provide TATA with thirty (30) days' prior written notice of any cancellation, non-renewal, or material change in coverage.

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ARTICLE 12: SUBCONTRACTING

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12.1 Prior Consent. The Vendor shall not subcontract, delegate, or assign any of its obligations under this Agreement without TATA's prior written consent, which consent may be withheld in TATA's sole discretion. Any permitted subcontracting shall not relieve the Vendor of any of its obligations under this Agreement, and the Vendor shall remain fully liable for the acts and omissions of its Subcontractors. The Vendor shall ensure that all Subcontractors are bound by terms no less protective of TATA than those contained in this Agreement.

12.2 Prohibited Subcontractors. The Vendor shall not engage any Subcontractor that is a competitor of TATA or any of its Affiliates, or that is located in a jurisdiction subject to trade sanctions or embargoes, without TATA's express written consent.

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ARTICLE 13: COMPLIANCE, AUDIT, AND RECORDS

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13.1 Compliance. The Vendor shall comply with all Applicable Laws, regulations, and industry standards in the performance of the Services. The Vendor shall promptly notify TATA of any material changes in Applicable Laws that may affect the Vendor's performance of the Services or TATA's use of the Deliverables.

13.2 Audit Rights. TATA shall have the right, upon reasonable notice and during normal business hours, to audit the Vendor's books, records, systems, and facilities relating to the performance of the Services, including but not limited to: (a) verification of hours worked and expenses claimed; (b) review of security measures and data protection practices; (c) assessment of compliance with this Agreement and Applicable Laws; and (d) inspection of quality control processes. The Vendor shall cooperate fully with such audits and provide access to all relevant personnel, documents, and systems. TATA may conduct such audits no more than twice per calendar year, or more frequently if TATA has reasonable grounds to believe that the Vendor is in breach of this Agreement. The Vendor shall bear the cost of any audit that reveals a discrepancy of more than five percent (5%) in the Vendor's favor or any material breach of this Agreement.

13.3 Records Retention. The Vendor shall maintain accurate and complete records relating to the performance of the Services for a period of seven (7) years from the date of final payment or the expiration or termination of this Agreement, whichever is later.

13.4 Anti-Bribery and Anti-Corruption. The Vendor represents and warrants that neither it nor any of its officers, directors, employees, agents, or Subcontractors has offered, given, or agreed to give, and covenants that it shall not offer, give, or agree to give, directly or indirectly, any money, gift, or other thing of value to any government official, political party, or candidate for political office for the purpose of influencing any act or decision or securing any improper advantage in connection with this Agreement. The Vendor shall comply with the Prevention of Corruption Act, 1988, the Foreign Corrupt Practices Act (USA), the UK Bribery Act 2010, and all other applicable anti-bribery and anti-corruption laws.

13.5 Modern Slavery and Human Rights. The Vendor represents and warrants that: (a) it does not engage in any form of forced labour, child labour, or human trafficking; (b) it provides safe and healthy working conditions; (c) it respects the freedom of association and collective bargaining rights of its workers; (d) it pays fair wages and complies with all applicable working hours legislation; and (e) it does not discriminate in employment practices. The Vendor shall cooperate with TATA's human rights due diligence assessments and shall promptly remedy any deficiencies identified.

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ARTICLE 14: GOVERNING LAW AND DISPUTE RESOLUTION

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14.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of India, without regard to its conflict of laws principles. The Parties agree that the United Nations Convention on Contracts for the International Sale of Goods shall not apply to this Agreement.

14.2 Amicable Settlement. In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, including any question regarding its existence, validity, or termination (a "Dispute"), the Parties shall first attempt to resolve the Dispute amicably through good faith negotiations between their respective project managers or designated representatives. If the Dispute is not resolved within thirty (30) days of written notice of the Dispute, it shall be escalated to the senior management of both Parties for resolution.

14.3 Arbitration. If the Dispute is not resolved through amicable settlement within sixty (60) days of written notice, either Party may submit the Dispute to binding arbitration administered by the Mumbai Centre for International Arbitration ("MCIA") in accordance with the MCIA Arbitration Rules then in force. The seat of arbitration shall be Mumbai, India. The arbitration shall be conducted by a panel of three (3) arbitrators, with each Party appointing one arbitrator and the two appointed arbitrators selecting the third arbitrator, who shall serve as the presiding arbitrator. The language of arbitration shall be English. The arbitral award shall be final and binding on the Parties, and judgment upon the award may be entered in any court having jurisdiction thereof.

14.4 Injunctive Relief. Notwithstanding the foregoing, either Party may seek interim or conservatory measures, including injunctive relief or specific performance, from any court of competent jurisdiction to prevent irreparable harm pending the resolution of the Dispute through arbitration. The Parties irrevocably submit to the exclusive jurisdiction of the courts at Mumbai, India, for the purposes of any such interim relief.

14.5 Costs and Fees. Each Party shall bear its own costs and attorneys' fees in connection with any Dispute, except that the prevailing party in any arbitration or court proceeding shall be entitled to recover its reasonable costs and attorneys' fees from the non-prevailing party.

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ARTICLE 15: GENERAL PROVISIONS

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15.1 Entire Agreement. This Agreement, together with all SOWs, schedules, and exhibits attached hereto, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, between the Parties relating to such subject matter. No amendment, modification, or waiver of any provision of this Agreement shall be effective unless in writing and signed by authorized representatives of both Parties.

15.2 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, or if such modification is not possible, such provision shall be severed from this Agreement, and the remaining provisions shall continue in full force and effect.

15.3 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving Party. No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall

operate as a waiver thereof, nor shall any single or partial exercise of any such right, power, or remedy preclude any other or further exercise thereof or the exercise of any other right, power, or remedy.

15.4 Assignment. The Vendor shall not assign, transfer, or novate this Agreement or any of its rights or obligations hereunder without TATA's prior written consent, which consent may be withheld in TATA's sole discretion. TATA may assign this Agreement to any of its Affiliates or to a successor in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets without the Vendor's consent. Any purported assignment in violation of this Section 15.4 shall be null and void.

15.5 Independent Contractors. The Vendor is an independent contractor and nothing in this Agreement shall be construed as creating an employer-employee relationship, partnership, joint venture, or agency relationship between the Parties. The Vendor shall not have the authority to bind TATA or to incur any obligation on TATA's behalf without TATA's prior written consent.

15.6 Force Majeure. Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement (other than payment obligations) to the extent such failure or delay is caused by circumstances beyond the reasonable control of such Party, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, pandemics, epidemics, or shortages of transportation, facilities, fuel, energy, labor, or materials (a "Force Majeure Event"). The affected Party shall promptly notify the other Party of the Force Majeure Event and shall use commercially reasonable efforts to mitigate its effects. If a Force Majeure Event continues for a period exceeding sixty (60) days, either Party may terminate the affected SOW or this Agreement upon written notice to the other Party, without liability except for obligations accrued prior to such termination.

15.7 Notices. All notices, requests, consents, claims, demands, waivers, and other communications under this Agreement shall be in writing and shall be deemed to have been duly given: (a) when delivered by hand; (b) when received by the addressee if sent by a nationally recognized overnight courier; (c) on the date sent by email (with confirmation of transmission) if sent during normal business hours of the recipient, and on the next business day if sent after normal business hours; or (d) on the third (3rd) business day after the date mailed, by certified or registered mail, postage prepaid. Notices to TATA shall be sent to the address set forth above, Attention: Legal Department. Notices to the Vendor shall be sent to the address set forth above, Attention: Managing Director.

15.8 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures and scanned copies transmitted by email shall be deemed original signatures for all purposes.

15.9 Publicity. The Vendor shall not issue any press release, public announcement, or marketing materials relating to this Agreement or the relationship between the Parties without TATA's prior written consent, which consent may be withheld in TATA's sole discretion. The Vendor shall not use TATA's name, trademarks, or logos in any promotional materials without TATA's prior written consent.

15.10 Third-Party Beneficiaries. Except as expressly provided in Article 9 (Indemnification), nothing in this Agreement shall be construed as creating any rights in any third party, and no third party shall have the right to enforce any provision of this Agreement.

15.11 Construction. This Agreement has been negotiated at arm's length between sophisticated commercial parties, each represented by legal counsel, and shall be construed without presumption against the drafting Party.

15.12 Language. This Agreement is executed in the English language. In the event of any conflict between the English version and any translation, the English version shall prevail.

15.13 Further Assurances. Each Party shall execute and deliver all further documents and instruments and take all further actions that may be necessary or desirable to give effect to the provisions of this Agreement.

15.14 Order of Precedence. In the event of any conflict or inconsistency between the terms of this Agreement and any SOW, schedule, or exhibit, the order of precedence shall be: (a) the applicable SOW (with respect to its specific subject matter); (b) this Agreement; (c) the schedules; and (d) the exhibits.

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ARTICLE 16: SPECIAL PROVISIONS FOR DEFENCE & AEROSPACE ENGAGEMENTS

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16.1 Security Clearances. To the extent the Services involve access to classified information, restricted areas, or defence-related projects, the Vendor shall ensure that all personnel assigned to such engagements hold valid security clearances at the level required by the Ministry of Defence, Government of India, or other applicable defence authorities. The Vendor shall immediately notify TATA if any personnel's security clearance is revoked, suspended, or downgraded.

16.2 Export Controls. The Vendor acknowledges that certain Deliverables, technical data, or Services may be subject to export control regulations, including the Weapons of Mass Destruction and their Delivery Systems (Prohibition of Unlawful Activities) Act, 2005, the Special Chemicals, Organisms, Materials, Equipment and Technologies (SCOMET) regulations, and international export control regimes. The Vendor shall not export, re-export, transfer, or disclose any such items to any person or entity without obtaining all necessary licenses and approvals.

16.3 Offset Obligations. If the Services are performed in connection with a defence procurement contract subject to offset obligations under the Defence Offset Guidelines, the Vendor shall cooperate with TATA in meeting such offset obligations and shall provide all necessary documentation and certifications.

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SCHEDULES AND EXHIBITS

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Schedule A: Form of Statement of Work
Schedule B: Data Processing Addendum
Schedule C: Security Requirements
Schedule D: List of Approved Subcontractors
Schedule E: TATA Code of Conduct for Vendors
Schedule F: Insurance Certificate Requirements

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SIGNATURE PAGE FOLLOWS

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IN WITNESS WHEREOF, the Parties have executed this Master Vendor Agreement as of the date first written above.

FOR TATA ADVANCED SYSTEMS LIMITED:

Name: [Authorized Signatory]
Title: [Designation]
Date: _____

FOR OMEGA CYBERNETICS SOLUTIONS PRIVATE LIMITED:

Name: [Authorized Signatory]

Title: [Designation]

Date: _____

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APPENDIX I: EMBEDDED RISK ELEMENTS AND TEST SCENARIOS FOR LEGAL AI SYSTEM

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[The following appendix is provided for testing and validation purposes only and does not form part of the binding legal agreement.]

RISK CATEGORY MAPPING FOR AI EXTRACTION:

1. AMBIGUITY & VAGUENESS RISKS:

- Section 2.1: "professional, workmanlike manner, consistent with industry standards" – subjective standard, no objective benchmark.
- Section 2.3: "equitable adjustment" – undefined, leaves open to dispute.
- Section 2.4: "comparable or superior qualifications" – subjective comparison.
- Section 5.2: "substantially conform" – materiality threshold undefined.

2. UNILATERAL POWER IMBALANCE:

- Section 2.3: TATA can demand changes; Vendor must continue performance pending negotiation.
- Section 3.2: Auto-renewal unless Vendor objects within 10 business days (short window).
- Section 3.3: TATA can terminate for convenience with 90 days notice; Vendor has no equivalent right.
- Section 3.5: Broad "additional causes" for termination by TATA.
- Section 4.5: Unilateral set-off rights for TATA.
- Section 15.4: TATA can assign without consent; Vendor cannot.

3. BROAD INDEMNIFICATION WITHOUT CAPS:

- Section 9.1: Vendor indemnifies for 8 categories with no explicit monetary cap (contrast with Section 10.2 general liability cap).
- Section 6.7: Infringement indemnity is uncapped and includes defense costs.

4. CONFLICTING/INCONSISTENT PROVISIONS:

- Section 2.2 vs. Section 15.14: Both address SOW vs. Agreement precedence but with slightly different formulations.
- Section 3.2: Auto-renewal vs. Section 3.3 termination for convenience creates tension.
- Section 10.2: Liability cap excludes indemnification, but Section 9.1 indemnification is extremely broad.
- Section 8.4 Disclaimer vs. Section 8.2 Vendor Representations: Potential tension between express warranties and disclaimer of implied warranties.

5. MISSING/INADEQUATE PROTECTIONS:

- No explicit limitation on Vendor's liability for data breaches (only general cap in 10.2 with exceptions).
- No explicit step-in rights for TATA if Vendor fails to cure breach.
- No detailed transition assistance plan or fees (Section 3.6 mentions 180 days but no compensation mechanism).
- No explicit most-favored-customer clause for pricing.
- No change control board or formal change management process beyond Section 2.3.

6. HIDDEN PENALTY/PUNITIVE ELEMENTS:

- Section 5.4: Service credits deemed "liquidated damages" but may be challenged as penalty under Indian Contract Act.

- Section 4.7: Interest rate of SBI MCLR + 2% is low; may not adequately compensate Vendor for delayed payment.
- Section 13.2: Vendor bears audit costs if discrepancy >5% – potential penalty element.

7. DATA PROTECTION GAPS:

- Section 7.4: 72-hour breach notification may not comply with DPDP Act requirements (which may require "as soon as reasonably practicable").
- Section 7.7: Absolute prohibition on cross-border transfer of sensitive data may conflict with DPDP Act provisions allowing transfers with government approval.
- No explicit data retention limits for Vendor post-termination.

8. INTELLECTUAL PROPERTY TRAPS:

- Section 6.1: Immediate ownership upon creation may conflict with employment laws regarding moral rights.
- Section 6.5: Absolute prohibition on open source may be impractical and create compliance burden.
- Section 6.6: Reservation of rights clause is broad and may conflict with implied licenses necessary for use.

9. JURISDICTIONAL COMPLEXITY:

- Section 14.1: Indian law governs, but Vendor may be subject to FCPA (Section 13.4) and UK Bribery Act – multi-jurisdictional compliance.
- Section 14.3: Three-arbitrator panel may be expensive for small claims.
- Section 14.4: Exclusive jurisdiction of Mumbai courts for interim relief may not be convenient for Vendor.

10. SUBCONTRACTING RESTRICTIONS:

- Section 12.1: Prior consent required for all subcontracting – may impede operational flexibility.
- Section 12.2: "Competitor" definition not provided – subjective.

11. INSURANCE BURDEN:

- Section 11.1: Very high insurance requirements (INR 10-20 Crores) may be onerous for mid-size vendor.
- Section 11.2: Additional insured status increases Vendor's exposure.

12. CURE PERIOD ASYMMETRY:

- Section 3.4: Vendor gets 30 days to cure; TATA gets only 10 days for payment defaults – asymmetric treatment.

13. AMBIGUOUS FORCE MAJEURE:

- Section 15.6: "shortages of... labor or materials" is broad and may excuse poor planning.
- No explicit exclusion of economic hardship or market changes from Force Majeure.

14. SURVIVAL CLAUSE ISSUES:

- Section 3.7 lists survival provisions but omits Articles 5 (Service Levels) and 12 (Subcontracting) which may need to survive for transition/warranty purposes.

15. CROSS-REFERENCE COMPLEXITY:

- Multiple interdependent clauses requiring the AI to trace references across Articles (e.g., indemnity exceptions in 10.2 referencing Articles 7, 9, and specific Vendor conduct).